

1 ENGROSSED SENATE
2 BILL NO. 1565

By: Stanley and Boren of the
Senate

3 and

4 Gise of the House

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7 An Act relating to the state Medicaid program;
8 defining term; establishing certain powers and duties
9 of the Oklahoma Health Care Authority for the purpose
10 of participation in the Transforming Maternal Health
11 (TMaH) Model; limiting use of certain funds;
12 requiring inclusion of nutrition support services;
13 requiring and authorizing certain additional services
14 subject to specified condition; requiring submission
15 of certain final report; providing for codification;
16 providing an effective date; and declaring an
17 emergency.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 5009.8 of Title 63, unless there
21 is created a duplication in numbering, reads as follows:

22 A. As used in this section, "Transforming Maternal Health
23 (TMaH) Model" means a payment and service delivery model developed
24 by the Centers for Medicare and Medicaid Services (CMS) Center for
Medicare and Medicaid Innovation, as detailed in the CMS notice of
funding opportunity issued on June 26, 2024, that:

1 1. Supports participating state Medicaid agencies in the
2 development of a whole-person approach to pregnancy, childbirth, and
3 postpartum care; and

4 2. Aims to improve outcomes and experiences for mothers and
5 babies, while also reducing overall program expenditures, by
6 addressing the physical, mental health, and social needs experienced
7 during pregnancy.

8 B. For the purpose of participation in the Transforming
9 Maternal Health (TMaH) Model, the Oklahoma Health Care Authority
10 shall have the power and duty to accept, receive, and expend federal
11 funds, grants, cooperative agreements, or demonstration model
12 funding awarded by the Centers for Medicare and Medicaid Services
13 (CMS), including funding made available through the TMaH Model, to
14 improve maternal health outcomes for women eligible for the state
15 Medicaid program. Such funds shall only be used to develop,
16 administer, and contract for maternal health services and supports
17 for pregnant and postpartum women who are Medicaid members.

18 C. Contingent upon federal approval and disbursement of
19 additional federal funds for nutrition support services within the
20 TMaH Model:

21 1. The services and supports described in subsection B of this
22 section shall include nutrition support services to pregnant and
23 postpartum women who have a diet-related condition or a condition or
24 disease that may contribute to a high-risk pregnancy or birth

1 complications, to maintain proper health and achieve healthy birth
2 outcomes;

3 2. Nutrition support services described in this subsection
4 shall include medically tailored home-delivered meals. Medically
5 tailored home-delivered meals shall be designed by a Registered
6 Dietitian Nutritionist using evidence-based nutritional standards to
7 meet the specific medical and nutritional needs of the individual
8 based on the specific disease or condition being managed, and shall
9 be palatable and appealing in taste and texture to promote adequate
10 intake; and

11 3. Nutrition support services described in this subsection may
12 include nutritional counseling; provided, that the Authority shall
13 not require a Medicaid member to undergo nutritional counseling as a
14 condition of receiving medically tailored home-delivered meals.

15 D. The Authority shall electronically submit a final report to
16 the Governor, the President Pro Tempore of the Senate, and the
17 Speaker of the House of Representatives after the conclusion of the
18 TMaH Model. The report shall summarize the services rendered under
19 the TMaH Model, detail financial information, report measurable
20 outcomes for the populations served, and evaluate the performance of
21 the program.

22 SECTION 2. This act shall become effective July 1, 2026.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 Passed the Senate the 26th day of March, 2026.

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Presiding Officer of the Senate

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7 Passed the House of Representatives the ____ day of _____,
8 2026.

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Presiding Officer of the House
of Representatives

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